

IMPORTANT NOTICE: This agreement is a standard form contract prepared by BrainGuardX AI Technologies Pvt. Ltd. It should be reviewed by a qualified legal counsel before execution. BrainGuardX AI Technologies Pvt. Ltd. reserves the right to update these terms with 30 (thirty) days' prior written notice to the Subscriber. Continued use of the Service after the notice period constitutes acceptance of the revised terms.

SUBSCRIBER SERVICE AGREEMENT

For the Use of Retail Nazar Platform & Services

Agreement Ref. No.: [RN-AGR-____]
Jurisdiction: Gautam Buddha Nagar, UP, India
Version: 1.0
Effective Date: [DD/MM/YYYY]

PARTIES AND RECITALS

This Subscriber Service Agreement (hereinafter referred to as the "Agreement") is entered into as of the Effective Date set forth above, by and between the following parties:

PARTY A: SERVICE PROVIDER

Legal Name	BrainGuardX AI Technologies Private Limited
Also referred to as	"Company" or "BGXT" or "Service Provider"
CIN/GSTIN	[To be filled] / [To be filled]
Registered Office	[Registered Office Address To be filled]
Product/Platform	Retail Nazar (retailnazar.com)
Support Email	support@retailnazar.com

PARTY B: SUBSCRIBER/CUSTOMER

Full Legal Name	[Subscriber Full Name]
Also referred to as	"Subscriber" or "Customer"
Store / Business Name	[Store / Business Name]
Business Address	[Complete Business Address including PIN Code]
GSTIN (if applicable)	[GSTIN / N.A.]

Contact Email / Mobile	[Subscriber Email Address] / [Subscriber Mobile Number]
Subscription Plan	[Starter / Growth / Pro / Pro+]

RECITALS. WHEREAS:

A. The Company is engaged in the business of developing and providing artificial intelligence-powered retail surveillance software-as-a-service solutions under the brand name Retail Nazar, accessible via the Platform at retailnazar.com.

B. The Subscriber is a retailer, shopkeeper, or business owner desirous of availing the Services offered by the Company for the purpose of monitoring and securing their retail premises through AI-assisted video surveillance.

C. The Company has agreed to provide, and the Subscriber has agreed to subscribe to, the Services on the terms and conditions set forth in this Agreement.

D. Both parties intend this Agreement to be legally binding and enforceable under the laws of India.

NOW, THEREFORE, in consideration of the mutual covenants, representations, warranties, and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. DEFINITIONS

In this Agreement, unless the context otherwise requires, the following terms shall have the meanings ascribed to them below:

- **"Agreement"** means this Subscriber Service Agreement, including all Schedules, Annexures, and any amendments made in writing and signed by both parties.
- **"Service" / "Services"** means the AI-powered retail surveillance software-as-a-service platform known as Retail Nazar, including all features, modules, APIs, dashboards, alert systems, cloud storage, and ancillary services provided by the Company under this Agreement.
- **"Platform"** means the web-based and/or mobile application interface accessible at retailnazar.com and any associated applications through which the Services are delivered.
- **"Subscriber"** means the individual, proprietorship, partnership, company, or other legal entity that has subscribed to the Services and is identified as Party B in this Agreement.
- **"Authorized User"** means any employee, agent, or contractor of the Subscriber who is authorized by the Subscriber to access and use the Platform on the Subscriber's behalf, subject to the user limits of the applicable Subscription Plan.
- **"Data" / "Subscriber Data"** means all video footage, images, metadata, event logs, and other information generated by or on behalf of the Subscriber through the use of the Services, including CCTV footage captured by the Subscriber's cameras.

- **"Alert"** means an automated notification generated by the AI engine of the Platform upon detection of a predefined event or anomaly (such as suspected shoplifting, unauthorized access, or unusual activity) within the Subscriber's camera feed.
- **"Subscription Fee"** means the recurring fee payable by the Subscriber to the Company for access to the Services, as specified in Clause 3 of this Agreement, exclusive of applicable taxes.
- **"Subscription Plan"** means the specific tier of service (Starter, Growth, Pro, or Pro+) selected by the Subscriber, which determines the features, camera limits, data retention, and pricing applicable to the Subscriber.
- **"Trial Period"** means the initial 3 (three) calendar day period commencing from the date of account activation, during which the Subscriber may access the Services at no charge.
- **"Intellectual Property"** means all patents, copyrights, trademarks, trade secrets, algorithms, source code, object code, AI models, machine learning models, databases, designs, and any other proprietary rights, whether registered or unregistered.
- **"Confidential Information"** means any non-public information disclosed by one party to the other in connection with this Agreement that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure.
- **"Force Majeure Event"** means any event beyond the reasonable control of a party, including but not limited to acts of God, natural disasters, war, terrorism, government actions, internet outages, power failures, or pandemic.
- **"GST"** means Goods and Services Tax as applicable under the Central Goods and Services Tax Act, 2017, and the Integrated Goods and Services Tax Act, 2017, and any rules or regulations made thereunder.
- **"Effective Date"** means the date on which this Agreement is executed by both parties, or the date on which the Subscriber activates their account on the Platform, whichever is earlier.
- **"Uptime"** means the percentage of time in a calendar month during which the Platform is accessible and operational, excluding scheduled maintenance windows and Force Majeure Events.

2. SCOPE OF SERVICES

2.1 Services Provided

Subject to the terms of this Agreement and payment of applicable Subscription Fees, the Company shall provide the Subscriber with access to the following Services through the Platform:

- **AI-Powered Detection:** Real-time and near-real-time AI analysis of video feeds from the Subscriber's connected cameras for detection of predefined events including, but not limited to, suspected shoplifting behavior, loitering, unauthorized zone entry, crowd density anomalies, and other configurable retail security events;
- **Automated Alerts:** Generation and delivery of Alerts via the Platform dashboard, email, and/or mobile push notifications upon detection of flagged events;

- **Cloud Storage:** Encrypted cloud storage of video footage and event data for the retention period applicable to the Subscriber's plan (30 days for Starter and Growth plans; 90 days for Pro and Pro+ plans);
- **Dashboard Access:** Access to a web-based management dashboard for viewing live feeds (where technically supported), reviewing recorded footage, managing camera configurations, viewing analytics reports, and managing account settings;
- **Customer Support:** Technical support as described in this Agreement.

2.2 Services Not Provided / Limitations

The Subscriber expressly acknowledges and agrees that:

- The Company does not provide physical security personnel, on-site monitoring, or any form of physical intervention;
- The Company does not guarantee a 100% (one hundred percent) detection rate. The AI system is a probabilistic tool and may produce false positives (incorrect alerts) or false negatives (missed detections).
- The Subscriber shall not rely solely on the Service as the exclusive means of security for their premises;
- The accuracy of AI detections is dependent on factors including, but not limited to, camera placement, image quality, lighting conditions, network bandwidth, and camera resolution. The Company shall not be liable for reduced accuracy arising from suboptimal camera conditions;
- The Service is not a substitute for legal evidence collection systems, and the Company makes no representation that footage or Alerts generated by the Platform will be admissible as evidence in any legal proceeding.

AI DISCLAIMER: Retail Nazar is an AI-assisted surveillance tool designed to augment, not replace, human judgment and conventional security measures. Detection accuracy varies based on environmental conditions. The Company expressly disclaims any warranty of 100% detection accuracy or completeness.

2.3 Compatible Camera Requirements

The Subscriber is responsible for ensuring that their cameras meet the minimum technical requirements for compatibility with the Platform. Recommended specifications include: IP cameras (ONVIF-compatible preferred) with a minimum resolution of 1080p (Full HD); Cameras capable of RTSP (Real Time Streaming Protocol) stream output; Stable internet connectivity with a minimum upload speed of 2 (two) Mbps per connected camera; Adequate lighting at the monitored premises to enable effective AI analysis. The Company may, from time to time, update the list of compatible camera models and technical requirements. Such updates shall be communicated to the Subscriber via the Platform or email with reasonable notice.

3. SUBSCRIPTION PLANS AND COMMERCIAL TERMS

3.1 Subscription Plans

The Company offers the following Subscription Plans. All prices are in Indian Rupees (INR) and are exclusive of applicable GST:

INTRODUCTORY OFFER: The Subscriber shall be entitled to a 25% introductory discount on the Subscription Fees for the first billing cycle.

Plan	Monthly Fee (excl. GST)	Annual Fee (excl. GST)	Camera Limit	Data Retention	Key Features
Starter	999 / month	9,990 / year	1-2 cameras	30 days	AI detection, alerts, dashboard, email support
Growth	1,999 / month	19,990 / year	Up to 5 cameras	30 days	All Starter features + analytics reports, WhatsApp alerts
Pro	3,499 / month	34,990 / year	Up to 10 cameras	90 days	All Growth features + priority support, advanced analytics
Pro+	5,999 / month	59,990 / year	Unlimited cameras	90 days	All Pro features + dedicated support, custom integrations

3.2 Annual Plan Benefit

Annual Subscription Fees are equivalent to 10 (ten) months' billing, providing a saving equivalent to 2 (two) months of the applicable monthly Subscription Fee. Annual fees are payable upfront in full at the commencement of the annual subscription term.

3.3 Plan Changes

The Subscriber may upgrade their Subscription Plan at any time with immediate effect. Downgrades shall take effect at the commencement of the next billing cycle. The Company reserves the right to modify plan features and pricing with 30 (thirty) days' prior written notice to the Subscriber.

3.4 Camera Limits

The Subscriber shall not connect more cameras than permitted under their Subscription Plan. Exceeding the camera limit may result in automatic suspension of excess camera feeds or a prompt to upgrade the plan. The Company shall not be liable for any loss arising from the suspension of excess camera feeds.

3.5 Free Trial

New Subscribers are entitled to a 3 (three) calendar day free trial commencing from the date of account activation, subject to the following conditions: The free trial is available only once per Subscriber (identified by email address, mobile number, GSTIN, or payment instrument). Any attempt to avail multiple trials through different accounts shall be deemed a breach of this Agreement; The Subscriber must provide valid payment details at the time of trial activation. If the Subscriber does not cancel before the expiry of the Trial Period, the applicable Subscription Fee shall be automatically charged; The Company reserves the right to modify or discontinue the free trial offer at any time without notice.

4. PAYMENT TERMS

4.1 Billing and Payment Gateway

All Subscription Fees shall be collected through Razorpay (or such other payment gateway as the Company may designate from time to time). The Subscriber authorizes the Company to charge the Subscription Fee to the payment instrument registered by the Subscriber on the Platform.

4.2 Billing Cycle

For monthly subscriptions, the Subscription Fee shall be billed on the same calendar date each month as the date of initial subscription (or the next business day if such date does not exist in a given month). For annual subscriptions, the full annual fee is billed upfront at the commencement of the subscription year.

4.3 Auto-Renewal

Subscriptions shall automatically renew at the end of each billing cycle (monthly or annual, as applicable) at the then-current Subscription Fee, unless the Subscriber cancels the subscription at least 24 (twenty-four) hours before the renewal date through the Platform dashboard or by written notice to the Company. The Company shall send a renewal reminder to the Subscriber's registered email address at least 7 (seven) days before the renewal date.

4.4 Taxes

All Subscription Fees are exclusive of GST. GST at the rate of 18% (eighteen percent) (or such other rate as may be applicable under law from time to time) shall be charged in addition to the Subscription Fee and shall be payable by the Subscriber. The Company shall issue a valid GST invoice for each payment received.

4.5 Late Payment

In the event of a failed payment or non-payment of the Subscription Fee on the due date, the Company shall: Provide a grace period of 7 (seven) calendar days from the due date, during which the Subscriber may make payment without penalty; Suspend access to the Services upon expiry of the 7-

day grace period if payment remains outstanding; Charge interest on overdue amounts at the rate of 2% (two percent) per month (or part thereof), compounded monthly, from the date the payment was due until the date of actual payment.

4.6 Refund Policy

All Subscription Fees paid are non-refundable, except as follows: During the Trial Period, no charges are levied, and no refund is applicable; After the Trial Period has expired and the first Subscription Fee has been charged, no refunds shall be issued for any unused portion of the subscription period, whether upon cancellation, termination, or downgrade; In the event of a verified billing error attributable solely to the Company, the Company shall issue a credit note or refund for the erroneously charged amount within 15 (fifteen) business days of the Subscriber raising a written dispute.

NO REFUND POLICY: Subscription Fees paid after the expiry of the 3-day free trial are strictly non-refundable. The Subscriber is advised to fully evaluate the Service during the Trial Period before committing to a paid subscription.

4.7 Disputed Charges

The Subscriber must raise any billing dispute in writing to support@retailnazar.com within 30 (thirty) days of the disputed charge. Failure to raise a dispute within this period shall constitute acceptance of the charge.

5. SUBSCRIBER OBLIGATIONS

The Subscriber shall, at all times during the Term of this Agreement:

- **Internet Connectivity:** Maintain a stable, uninterrupted internet connection at the monitored premises with a minimum upload speed of 2 (two) Mbps per connected camera.
- **Compatible Equipment:** Use only IP cameras that meet the minimum technical specifications prescribed by the Company.
- **Credential Security:** Keep all login credentials strictly confidential and secure.
- **Notification of Changes:** Promptly inform the Company of any material changes to the camera setup.
- **Authorized Use:** Use the Service exclusively for monitoring the Subscriber's own retail premises as disclosed to the Company.
- **Legal Compliance:** Comply with all applicable laws, rules, and regulations governing the use of CCTV and AI-based surveillance systems, including the Information Technology Act, 2000, and the Digital Personal Data Protection Act, 2023.
- **Surveillance Signage:** Display clearly visible and legible signage at all entry points stating that "CCTV / AI Surveillance is Active".

- **Account Information:** Provide accurate, complete, and up-to-date information.
- **Timely Payment:** Pay all Subscription Fees and applicable taxes on or before the due date.

6. SUBSCRIBER RESTRICTIONS

The Subscriber shall NOT, directly or indirectly, and shall ensure that no Authorized User:

- Share, transfer, or disclose login credentials to any person who is not an Authorized User;
- Use the Service for any purpose that violates applicable law, including covert surveillance;
- Attempt to reverse engineer, decompile, disassemble, decode the Platform;
- Resell, sublicense, lease, rent, transfer the Service to any third party;
- Use the Service to monitor any undisclosed premises;
- Make false, misleading, or defamatory statements about the Company or the Retail Nazar brand;
- Attempt to circumvent the billing system or use unauthorized discount codes;
- Introduce malware or system interference into the Platform;
- Infringe on Intellectual Property by removing copyright notices;
- Use the Service to build a competitive product.

BREACH OF RESTRICTIONS: Any violation of the restrictions set forth in Clause 6 shall constitute a material breach of this Agreement, entitling the Company to immediately suspend or terminate the Subscriber's access to the Service without notice and without refund.

7. DATA PRIVACY AND SECURITY

7.1 Applicable Law. The Company's processing of data shall comply with the Information Technology Act, 2000, and the DPDP Act, 2023.

7.2 Data Storage and Encryption. Data shall be stored encrypted using industry-standard protocols (AES-256 for data at rest, TLS/SSL for transit).

7.3 Data Retention. Data is retained for 30 days (Starter/Growth) or 90 days (Pro/Pro+), after which it is deleted.

7.4 Subscriber Ownership. The Subscriber retains full ownership of all Subscriber Data. The Company claims no ownership over it.

7.5 Non-Disclosure. The Company shall not access or share Subscriber Data except as required by law, to provide Services, or with written consent.

7.6 AI Model Training. The Company may use anonymized and aggregated metadata to improve AI models, strictly excluding identifiable footage.

7.7 Subscriber's Responsibilities. The Subscriber is the Data Fiduciary and must obtain necessary consents and provide required notices.

7.8 Security Breach. The Company shall notify the Subscriber within 72 hours of a confirmed data breach.

8. INTELLECTUAL PROPERTY

8.1 Company's Intellectual Property. All rights to the Platform, AI models, and Retail Nazar trademark remain exclusively with the Company.

8.2 Limited License. The Company grants a limited, non-exclusive, revocable license to the Subscriber to use the Platform.

8.3 Feedback. Any feedback provided by the Subscriber grants the Company a perpetual right to use it without obligation.

9. SERVICE LEVELS AND SUPPORT

9.1 Uptime Target. The Company aims for 99% Uptime, excluding scheduled maintenance and Force Majeure Events.

9.2 Support Channels. Email (support@retailnazar.com), WhatsApp, and an In-app Helpdesk.

10. LIMITATION OF LIABILITY

10.1 Cap on Liability. Maximum aggregate liability shall not exceed the Subscription Fees paid in the preceding 3 months.

10.2 Exclusion of Losses. The Company is not liable for indirect damages, lost profits, or losses arising from theft the AI system failed to detect.

11. TERM AND TERMINATION

11.1 Term. Commences on Effective Date and automatically renews.

11.2 Termination by Either Party. Either party may terminate with 30 days' written notice.

11.3 Termination for Cause. The Company may terminate immediately for breach of restrictions, non-payment, or security risks.

12. INDEMNIFICATION

The Subscriber shall indemnify the Company against claims arising from illegal surveillance, breach of this Agreement, or failure to display required signage.

13. DISPUTE RESOLUTION

13.1 **Governing Law.** Governed by the laws of India.

13.4 **Arbitration.** Disputes unresolved by mediation shall be settled by binding arbitration in Noida, Uttar Pradesh.

14. MISCELLANEOUS

14.3 **Entire Agreement.** This Agreement supersedes all prior agreements.

14.5 **Electronic Signatures.** Electronically executed copies are valid and binding.

15. EXECUTION AND SIGNATURES

IN WITNESS WHEREOF, the parties hereto have executed this Subscriber Service Agreement as of the date first written above.

FOR AND ON BEHALF OF:
BRAINGUARDX AI TECHNOLOGIES PVT. LTD.
(COMPANY)

SUBSCRIBER/CUSTOMER:
[SUBSCRIBER NAME/BUSINESS NAME]

Signature

Signature

Name:
Designation:
Date:
Place:

Name:
Designation:
Date:
Place:

[Company Seal / Stamp]

[Business Seal / Stamp]

WITNESS 1 (ON BEHALF OF COMPANY):

WITNESS 2 (ON BEHALF OF SUBSCRIBER):

Signature

Signature

Name:
Address:
Date:

Name:
Address:
Date: